



EMPLOYMENT TRIBUNALS

Claimant: Mr M O'Shea

Respondent: London and North Eastern Railway Limited

Heard at: Leeds

On: 3 and 4 November 2025

Before: Employment Judge Miller
Ms J Hiser
Ms G Fleming

Representation

Claimant: Mr A Tinnion – counsel

Respondent: Ms V Kendrew – Solicitor

JUDGMENT

1. The claimant's complaint under section 168 Trade Union and Labour Relations (Consolidation) Act 1992 that the respondent failed to permit the claimant to take time off during his working hours for the purpose of carrying out trade union duties is well founded and succeeds.
2. We make a declaration that the respondent failed to permit the claimant to take time off during his working hours for the purpose of carrying out his trade union duties on 15, 16, 17, 18 and 19 July 2024 and 12, 13, 14, 15 and 16 August 2024.
3. The complaint under section 169 Trade Union and Labour Relations (Consolidation) Act 1992 is dismissed
4. The respondent made an unauthorised deduction from the claimant's wages in respect of pay for the weeks commencing 14 July 2024 and 11 August 2024.
5. The respondent shall pay the claimant the sum of **£3027.50** subject to any deductions for tax, national insurance or pension contributions.

6. We make no separate award of compensation under section 168 Trade Union and Labour Relations (Consolidation) Act 1992

Employment Judge **Miller**

Date: 4 November 2025

Notes

Reasons for the judgment having been given orally at the hearing, written reasons will not be provided unless a request was made by either party at the hearing or a written request is presented by either party within 14 days of the sending of this written record of the decision.

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